

NDG ARCHITECTS Ltd

The Cotton Mill

26 Kings Road

Madchester

T +44 (0)1 2345 67890

NDG Ref: FP/00153

Date: 06-09-2018

Mr Jeff Tracy
IR Developments
Madchester
MA2 5JX

Dear Mr. Tracy,

Copyright of Madchester Towers Site

Congratulations on your recent sell-off on Madchester Tower site to Quick and Easy Developments, we would like to arrange a meeting for next Tuesday 11th of September 10:00 am at your office to discuss the potential in breach of copyright under the Copyright, Design and Patents Act 1988 and the Clause 6 Copyright and use of information.

We would like to remind you the following in regard to the copyright clause.

- NDG architects Ltd. shall own all the intellectual property rights including the copyright in the original work produced in the performance of the service. Clause 6.1
- We are free to reproduce the same design on other projects
- We can sue the new buyer if they attempt to use our drawings without a licence.

We would also remind you Clause 6.3 in the appointment, the material may not be used for reproduction of any part of an extension of the project unless a licence fee has been agreed. If we find any breach of copyright, we may seek legal action for loss and damages.

Yours sincerely,

Belinda Carter

RIBA DipArch BA (Hons)

Director

NDG Architects Ltd.

Directors: Belinda Carter, Michael Hart

Registered at: Wharf Mill, Piccadilly, Madchester MAD PPA Company No. 66789

T: 01925 455663 www.ndgarchitects.com F: 01925 455664

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Date: 06-09-2018

Mr Toby Hoods
Quick and Easy Developments
Madchester
MA6 3ER

Dear Mr. Hoods,

Copyright of Madchester Towers Site

Congratulations on your recent purchase on the Madchester Tower site from IR Developments, we would like to arrange a meeting for next Tuesday 11th of September 15:00pm at your office to discuss about the cost of the licence for this project and the potential in breach of copyright under the Copyright, Design and Patents Act 1988 and the Clause 6 Copyright and use of information of our appointment with IR Developments.

We would like to remind you the following in regard to the copyright clause.

- NDG architects Ltd. shall own all the intellectual property rights including the copyright in the original work produced in the performance of the service. Clause 6.1
- We are free to reproduce the same design on other projects
- We can seek legal advice if Quick and Easy Developments attempts to use our drawings without a licence.

We would also remind you your architect has a duty to comply with the ARB code of Conduct and RIBA Code of Professional Conduct 6.5/3.4 before taking over the previous appointment. We can make a formal complaint to relevant professional bodies if standards are found not met.

Yours sincerely,

Belinda Carter

RIBA DipArch BA (Hons)

Director

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INTEROFFICE MEMO

Date: 29th August 2018

To: Belinda Carter

Cc:

From: Jim Lau

RE: Madchester Towers

Having reviewed your Memo with regards to the IR development selling the site, I have addressed the potential copyright issues for the project and listed below.

Original Agreement

Base our original agreement (Letter of Appointment) point 8 Copyright, mentioning NDG owns all copyrights of drawings and specifications prepared for this project and client has the license to use specifically for this project and only. The project appoint is under RIBA Standard form of appointment which has been set out clearly the copyright clause 6 with Copyright and use of information.

What can we do?

- First, we should check if there are any outstanding fees the client has not yet paid, and we shall inform our Client the buyer that the copyright clauses that have set out in the contract of this project.
- If they go ahead without obtaining a license from us, we can seek legal advice and sue the buyer infringement of copyright.
- If another architect takes on the project and uses our drawings knowing that they are in infringement of copyright, they are also in breach of copyright and we can make a formal complaint to ARB and seek for legal advice to peruse a court case for compensation.

The position in relation to Copyright:

- The architect shall own all the intellectual property rights including the copyright in the original work produced in the performance of the service. Clause 6.1
- We are free to reproduce the same design on other projects
- We can sue the new buyer if the attempt to use our drawings without a licence.
- Our drawings and documents are marked to mention that we own the copyright and they cannot be reproduced without our permission.

In relation to this project:

- We can agree to give a licence for the copyright which we are entitled to payment.
- We are not liable if our document is modified and used for other purposes than originally intended.

Q6

What should the practice have done?

Apart from including the copyright clauses in the SFA and, we could have also included the followings:

- Include a statement of permitted use on all drawings
- Include our name and logo on all drawings.
- All work to include the copyright statement
- And only supply drawings in electronic format as a read-only copy so the work cannot be distorted or modify

Mr Hood's Architects should do

Quoting from RIBA Code of Professional Conduct 6.5/ 3.4, the Architects before taking over previous appoint, they should ascertain from the client for the following:

- The Client holds a license to use any information, including drawings, specifications, calculations and the like, prepared by the preceding appointee
- that there are no outstanding contractual or other matters, which would prevent the member from accepting the appointment.
- That the previous appointment has been properly determined.

I hope the above information is sufficient.

Let me know if you require any further information.

Kind Regards,

Jim Lau

E: jlau@ndgarchitects.com

T: 01234 567891

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Date: 06-09-2018

Mr Lionel Serving
LSR Solicitors
Madchester
MA2 5JX

Dear Mr. Serving,

Cc: Mr Jim Raffe

10 Pines Court Road certificates

I am writing in response to your Email dated 14th of August 2018 requesting for the certificates regarding Mr Raffe's property at 10 Pines Court Road.

Planning Permission

Please see the planning permission drawings and planning consent as per requested. Although this information could be obtained on the planning portal website.

Building Completion Certificate

As NDG architects were only appointed during the design phase of the project to obtain planning and building approval. Hence, we will not be able to provide you with the completion certificate and have to contact Mr Raffe directly with regard to this particular item. As a side note, NDG Architects has no authority on issuing any certificate in accordance with Building regulations, only approved inspector and Building officer is entitled to such certification.

Please do not hesitate to contact if further information is required.

Yours sincerely,

Belinda Carter

RIBA DipArch BA (Hons)

Director

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Q7

INTEROFFICE MEMO

Date: 8th Sept 2013

To: Belinda Carter

Cc:

From: Jim Lau

RE: Private House at 10 Pine Court Road Madchester

Having reviewed your Memo with regards to Mr Raff's sell-off, I have addressed few of the concern from reading Mr Raff's email and listed below.

I have noticed that Mr Raff has carried out some loft conversion works last year based on our previous proposal, since there is an alteration on the loft space by the Client himself, NDG should no longer be liable for the design and would not be able issue any building certificate for the Solicitor as we were only responsible for the design and not qualify to issue any certificate in accordance with the Building Regulation. This will only be certified by an approved inspector or building officer.

Also, NDG only produced the drawing for Mr Raff to build the design, as we were not the CA of this project, we cannot assure the house is built accord to our drawings/ design. Therefore, NDG should not take the risk to issue any certification, we should no longer be liable for the design and if there are any issues with the new buyer, we would be responsible for the matters.

Regarding the building approval, I hesitate if the new conversation complies with the approval as we have not been to the site since the loft is converted. Loft Conversion with the skylight installed would need to consult the Building Regulations.

Parts J and L of those regulations cover requirements relating to energy efficiency, thermal insulation and the protection of the building against fire. The rooflight will need approval under the regulations for the following reasons:

- The roof structure would require altering to install a rooflight
- The roof will have to carry the weight of a new skylight or be strengthened
- If a skylight's close to a boundary, you must consider its fire performance
- The rooflight must have sufficient insulation properties to protect against heat loss

Hence for those reasons, we will not be able to send the latest building regulations approval to the solicitor but only the original building approval.

We shall notify and advice Mr Raff to apply for regularisation application. It can regularise the unauthorised works and obtain a new certificate of regularisation. Mr Raff should contact the local authority building control service to discuss the situation before submitting a regularisation application. I hope the above information is sufficient.

Let me know if you require any further information.

Kind Regards,

Jim Lau

E: jlau@ndgarchitects.com

T: 01234 567891

EMAIL@ndgarchitects.com

Date: 8th Sept 2013

To: Michael Hart

Cc:

From: Jim Lau

RE: Alterations to 1 Wayward Place, Ormkirk

Having reviewed your Email with regards to the stainless-steel flue, I have addressed the related issues and way forward for the project as listed below.

Conservation Areas are designated by the local authority and Historic England (in London) or by the Secretary of State for Culture Media and Sport. Policies like National Planning Policy Framework and Local Plans have an effect in Conservation Area. Local authorities should develop policies to help preserve and enhance the character and appearance of conservation areas. We can contact the local authority conservation officer to find out what the local policies.

NPPF

According to the NPPF 127, the LPA should ensure the area justifies such status because of its special architectural or historic interest, and the concept of the conservation is not devalued.

Local Plans

Conservation statement, it contains information on a specific area on why the area is designated, when it was designated with the history about the area and the extent of the boundary.

Permitted Development

Although the property is classed as permitted development, but due to the prominent corner site and within the conservation area, LPA may withdraw permitted development right for a prescribed range of developments that affect the external appearance of building in a conservation area by the use of a direction under Article 4 of The Town and Country Planning Order 2015.

This means that establishing whether a proposal constitutes a permitted development or not is considerably more complicated than it may at first seem. Often the best way to determine whether a development is permitted or not is to ask the local planning authority. This can be done by asking for a 'lawful development certificate' for which a fee will be charged.

Enforcement action

It is a criminal offence to undertake work in a conservation area without consent, and the local planning authority can insist that the work is reversed with a notice. An enforcement notice is a legal document issued by the Planning Authority when there is a breach of planning control which defined in Town and Country Planning Act 1990.

The notice would state what the breach is and the remedies that are required to take. In our case is to remove the flue. The issue of the notice is followed by a period for compliance, which the client must comply with the notice. It is an offence not to comply to the notice once the compliance period has expired. Planning authorities can apply for confiscation orders to recover any financial benefit obtained through the unauthorised development.

The authority has the power to enter and carry out the notice requirement. It is an offence to obstruct the authority carrying out such exercising.

Q8

What can we do?

If the notice is issued, we can apply for an appeal to avoid removing the flue until the appeal has been decided. This could take up to 36 weeks. During the appeal, we should try applying for a Retrospective planning permission, this could allow the development to go ahead. This could be applied even the works have begun, but there is a very serious risk that permission will not be granted and then revert back to enforcement notice with actions. Then again you can appeal the Planning Inspectorate PINS.

Another option is to reduce the flue length and redesign or paint the flue in the colour of the brick facade, the LPA could accept the proposal with a Section 73 application 'Minor material amendment'. But we shall recommend the client first remove the flue and apply for any necessary consents.

I hope the above information is sufficient.

Let me know if you require any further information.

Kind Regards,

Jim Lau

E: jlau@ndgarchitects.com

T: 01234 567891

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Date: 06-09-2018

Confidential Letter

Garden Leave - The Duty of Fidelity Investigation

Dear Unnamed Employee,

It has come to our attention during a maintenance of an office computer, a discovery of a document associated with "Studio 100 Architects" which indicated that your intention of departure and taking company's two long-standing clients to Studio 100 Architects.

We have proceeded with investigation procedure in relation to such accusation and incident.

We hereby notice your suspension of work until further notice. In the meantime, we shall invite you to attend a disciplinary review with our management board for your defendant.

You can refer to Garden Leave in the employment contract clause xx in regard to your rights during this suspension.

We shall also remind you of the restrictive covenant of non-compete in your employment contract clause xx that your limited contract right to undertake activities within the same business sector of x amount of years. If you were found in breach of contract, we can take legal action and sue for any loss and damages.

Yours sincerely,

Michael Hart RIBA DipArch BA (Hons)

Director

For and on behalf of:

NDG architects ltd.

NDG Architects Ltd.

Directors: Belinda Carter, Michael Hart

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INTEROFFICE MEMO – CONFIDENTIAL

Date: 6th Sept 2013

To: Michael Hart

Cc:

From: Jim Lau

RE: STRICKLY PRIVATE AND CONFIDENTIAL

This is some serious matters, I have addressed the issues of this unnamed employee and listed below.

Potential Issues:

This is related Employment Rights Act 1996, where basic requirements are set up in an employment contract.

Copyright Breach

As NDG is Conservation Specialist, all design materials shall belong to the employer. There would be a possibility the employee is taking office material with his departure.

The Duty of Fidelity

This term requires the employee to faithfully serve the employer and must not act against the interests of the employer. This only applies during employment and does not carry on after termination of the employment contract. Examples of this include carrying on a business in direct competition with the employer or misuse of the employer's customer database. Post-employment restrictions must be expressly written down in the contract of employment to be binding on the employee after they have left.

Restrictive covenant – non-compete

For high-level position employee, the company should have a term set out to prevent a former employee from carrying out or doing various things for a period of time following their departure from the practice. E.g. working in the same specialist sector for a certain period of time. If the employee continues to move to our competitor, we can sue the unnamed employee of breach of contract.

ARB Code of conduct- Honesty Integrity

Architects are expected to act with honesty and integrity, and conflict of interest arises is expected to disclose. By taking NDG's clients to another company for a senior position would constitute for gaining benefits from this event. We should make complaints to ARB for hearing procedure.

Losing Clients

We shall inform them that we have official records of the unnamed employee's breach of contract and his/ hers related trade restrictions. This to remain the client from moving to our competitors.

The process we need to apply:

- Investigate allegations promptly

As the employee was using the office laptop, NDG can investigate and keep records of any documents as proof of breach of contract, this can prevent any claims for "unfair dismissal"

Q9

- Inform the employee of allegations and provide copies of evidence Invite the employee to a disciplinary hearing to present his/her version of the events – advise him/her of their right to be accompanied
- Consider employees version of events
- Consider whether a suspension is appropriate (on full pay)
an employee leaving a job – having resigned or otherwise had their employment terminated – is instructed to stay away from work during the notice period, while still remaining on the payroll.
- Decide whether allegations are upheld and, if so, consider what sanction to impose – warning, final warning or dismissal. In this case we
- Write to confirm decision and advise of right to appeal.
- Inform and complain to ARB and RIBA to initiate disciplinary proceedings in case the employee moves to the new company.

I hope the above information is sufficient.

Let me know if you require any further information.

Kind Regards,

Jim Lau

E: jlau@ndgarchitects.com

T: 01234 567891

EMAIL@ndgarchitects.com

Date: 6th Sept 2018

To: Sue Allen

Cc:

From: Jim Lau

RE: New Building for Madchester Art College

Having reviewed your Email with regards to the delay of completion, I have addressed the what option the contractor and client can consider upon minimise the effect of this incident.

How to Formalise?

With no arrangement for phased handover in the contract particulars, we cannot implement Sectional Completion. Therefore, Partial possession would be an option to allow the client to take possession of part of the building upon with contractor's agreement.

Practical completion is 'deemed to have occurred' for the 'relevant part' of the works on the relevant date. This will trigger the following events:

1. The ratification period for that part is deemed to have commenced.
2. The certificate of making good defects must be issued for that part separately
3. Liquidated damages are reduced by the proportion of the value and of the possessed part of the works to the contract sum
4. Half of the retention is released for that proportion of the works.

Procedures at each handover

The contractor shall be given time to assess and evaluate for a site meeting confirming this with the presence of the client, Health and Safety officer and approved inspector.

As per SBC16 clause 2.33, we as the CA must issue a notice to the contractor identifying precisely the extent of the 'Relevant part' and the date of possession. CA should also inform the client regarding the risk of partial possession and his duty to notify the contractor of his intention to evaluate and deduct Liquidated Damages proportionally.

Client's insurers must be informed to make sure cover is adequate with the partial possession.

It is possible that taking partial possession could be considered an 'impediment' entitling the contractor to claim an extension of time and direct loss & expense (if access to other parts is affected and causes disruption to the programme), therefore it would be wise to clarify the position with the contractor before a decision is made.

Practical completion certification and rectification periods

Reference to Guide to SBC Figure 4.1 The SBC16 timeline

Practical completion certificates are not issued after the partial possession, the certificate is only issued at the end of the works. Each relevant part is certified by issuing partial possession certificate and issue with a drawing to remove confusion as to extent of the part.

Each of the relevant parts' rectification period begins when the partial possession begins.

Who to Consult?

Client's Insurance

With the partial possession, contractor's work insurance will come to the end for the relevant part. Therefore, the client has the responsibility and obligated to reinstate insurance for the part when taking possession.

HSE officer

With CDM regulation 2015, we as the Principle Contractor should assist the PC to update and evaluate construction phase plan and H&S files.

Building officer/ M&E engineer

With the incomplete of escape staircase, we need to consult the building officer in regards complying with the part B requirement for the 'relevant parts of services despite zoning arrangement.

Other Considerations

- logistics on site could be an issue.
- The protection of completed parts of the works.

I hope the above information is sufficient.

Let me know if you require any further information.

Kind Regards,

Jim Lau

E: jlau@ndgarchitects.com

T: 01234 567891